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It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

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TENTATIVE RULINGS
July 9, 2026

#	Case Name	Tentative
1.	<u>30-2024-01389908-CU-PO-CJC</u> Noriega vs. Avalonbay Communities, Inc.	Before the Court is a Motion to Compel the Further Deposition Testimony (“MF-DEPO”) of Plaintiff Carlos Noriega (“Plaintiff”) brought by Defendant Avalonbay Communities, Inc. (“Defendant”). ROA 279. The underlying controversy arises from an alleged slip-and-fall incident that occurred while Plaintiff was a resident of an apartment complex owned and operated by Defendant. ROA 279, p.5. Defendant seeks an order, pursuant to California Code of Civil Procedure Sections 2020.240, 2023.010 , 2023.030, 2025.240, and 2025.480, compelling Plaintiff to appear for deposition, provide further deposition testimony, and produce documents. ROA 279, p.2. Plaintiff also requests an order compelling Plaintiff’s counsel, Gustav A. von Shulz, to comply with the provisions of California Code of Civil

		Procedure Sections 2025.470 and 2025.480. <i>Id.</i> Additionally, Defendant seeks an award of monetary discovery sanctions of \$6,505.10 for the costs incurred by Defendant in bringing this motion. <i>Id.</i> Plaintiff requests that the Court deny Defendants' motion and request for sanctions. ROA 312, p.2. Motions to Compel Further Deposition Testimony and Production California Code of Civil Procedure Section 2025.480 states that "[i]f a deponent fails to answer any question or to produce any document . . . or tangible thing under the deponent's control that is specified in the deposition notice . . . the party seeking discovery may move the court for an order compelling that answer or production." Cal. Civ. Proc. Code § 2025.480(a). The moving party must submit their motion "no later than [sixty] 60 days after the completion of the record, and shall be accompanied by a meet and confer declaration" Cal. Civ. Proc. Code § 2025.480(b). Motions filed beyond this period are untimely and must be denied. <i>Unzipped Apparel, LLC v. Bader</i>, 156 Cal. App. 4th 123, 136 (2007). Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b). Here, Defendant served Plaintiff with a deposition notice and request for production of documents on February 20, 2026. ROA 277, ¶ 4. The notice scheduled the deposition for March 12, 2026. <i>Id.</i> On March 6, 2026, Plaintiff served unverified responses to
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	Defendant's deposition notice for the production of documents by email. ROA 277, ¶ 5. Defendant's deadline to file a motion to compel further responses to requests for production pursuant to the deposition notice was May 19, 2026. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2025.480(b). On March 12, 2026, Defendant conducted Plaintiff's in-person video deposition. ROA 277, ¶ 6. As a result of Plaintiff's counsel's conduct during the deposition, Defendant terminated the deposition after one hour and determined to seek court intervention to facilitate Plaintiff's deposition. <i>See</i> ROA 277 ¶ 9, Exh. 3. On April 14, 2026, Defendant served Plaintiff with MF-DEPO by email. ROA 279, p.19. The Court notes here that the record presents very compelling evidence that Plaintiff's counsel engaged in improper gamesmanship during deposition and finds more than ample grounds to grant Defendant's requested relief. Nevertheless, Defendant's motions suffer from fatal procedural defects, outlined <i>infra</i>, that prevent the relief sought. Accordingly, despite the merits of Plaintiff's position, the Court is reluctantly compelled to deny the motions on procedural grounds. The Court notes that neither of Defendant's declarations (ROAs 277, 288) satisfies the statutory meet and confer requirement to attempt, in good faith, to meet and confer <i>in person, by phone, or by videoconference</i>, and to discuss the retention of a certified shorthand reporter for the hearing on the motion. <i>Compare</i> Cal. Civ. Proc. Code § 2014.040 <i>with</i> ROAs 277, 288. The Court further notes that all relevant events preceding the herein motion began well after the effective date of amendments to California Code of Civil Procedure Section 2016.040. <i>See</i> ROA 277, ¶ 4. Additionally, Rule 3.1345 of the California Rules of Court requires motions to compel further responses to requests for production and motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court rule 3.1345(a). No separate statement is
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		required when: (i) no response has been provided to the discovery request; or (ii) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Court rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a motion. <i>See Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008). Importantly, in addition to a declaration outlining the moving party's efforts to meet and confer in good faith to resolve the underlying discovery disputes, California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to "set forth specific facts showing good cause justifying the discovery sought by the demand." Cal. Civ. Proc. Code § 2031.310(b)(1). Under this Court's reading of the Civil Discovery Act, a moving party is not relieved from the good cause showing requirement by nesting requests for production with a deposition notice. While the Court has discretion to hear a motion despite the lack of a separate statement, here, the Court finds that Defendant's failure to provide a separate statement establishing good cause for the requested further responses to its requests for production is fatal to that portion of the motion. Taken together, Defendant's failure to satisfy the statutory meet and confer requirements and failure to provide a separate statement warrant denial of Defendant's motion, despite the perceived merits of Defendant's position. Sanctions re: Motions to Compel Discovery The California Code of Civil Procedure authorizes the imposition of various sanctions for misuse of the discovery process, including, but not limited to, "[making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." Cal. Civ. Proc. Code § 2023.010(h). California Code of Civil Procedure Section 2025.480 imposes mandatory monetary sanctions "against any party
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2.	<u>30-2023-01330408-CU-IC-CJC</u> U.S. Bank National Association vs. Pacific Life Insurance Company	Before the Court is one Motion to Compel Deposition, and Sanctions, brought by Plaintiff and Cross-Defendant U.S. Bank National Association ("Plaintiff") against Defendant and Cross-Complainant Pacific Life Insurance Company ("Defendant"). ROA 361. The underlying controversy concerns the payment of death benefits under a life insurance policy. The action involves claims of breach of contract, breach of the covenant of good faith and fair dealing, promissory estoppel, and unjust enrichment, as well as counterclaims that the underlying policy is void under Delaware law. ROA 361, p.7. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2025.450 compelling Defendant, within six (6) days of a ruling on this motion, to produce its persons most qualified ("PMQ") to testify on the topics